

《最低工資條例》（第 608 章）「實習學員」身份確認書
Confirmation of “student intern” status under the Minimum Wage Ordinance (Cap. 608)

須知事項

Note

- 1 「實習學員」身份確認書（下稱「確認書」）適用於屬《最低工資條例》（第608章）所指的實習學員。「實習學員」指下列類別的學生：
- (a) 在一段期間內，進行在與某教育機構正向該學生提供的任何經評審課程¹有關連的情況下，由該機構安排或認可的工作；或
 - (b) 居於香港，並在一段期間內，進行在與某機構正向該學生提供的任何非本地教育課程²有關連的情況下，由該機構安排或認可的工作，
- 而該工作就頒授該課程所達致的學術資格而言，屬頒授要求中的必修或選修部分。

The Confirmation of “student intern” status (“Confirmation”) applies to a student intern as defined in the Minimum Wage Ordinance (Cap. 608). “Student intern” means:

- (a) a student undergoing a period of work arranged or endorsed by an education institution in connection with an accredited programme¹ being provided by the institution to the student; or
- (b) a student resident in Hong Kong and undergoing a period of work arranged or endorsed by an institution in connection with a non-local education programme² being provided by the institution to the student, for which the work is a compulsory or elective component of the requirements for the award of the academic qualification to which the programme leads.

- 2 法定最低工資不適用於實習學員，僱主根據《僱傭條例》（第57章）須備存教育機構發出的文件或其副本，以顯示有關工作期是在與該教育機構正向該實習學員提供的課程（該課程屬《最低工資條例》第2條中「實習學員」的定義所涵蓋的類別）有關連的情況下，由該教育機構安排或認可。本確認書樣本供教育機構參考，以確認實習學員的身份及所安排或認可的工作的資料。

Statutory Minimum Wage does not apply to a student intern. Under the Employment Ordinance (Cap. 57), the employer shall keep a document (or copy of a document) issued by an education institution showing that the period of work is arranged or endorsed by the education institution in connection with a programme being provided by the education institution to the student intern that is of a kind covered by the definition of “student intern” in section 2 of the Minimum Wage Ordinance. This Specimen Confirmation is for education institutions’ reference in confirming the identity of the student intern and particulars of the work as arranged or endorsed.

- 3 香港特別行政區政府勞工處的執法人員會前往不同的工作地點視察，以確保僱主遵行由勞工處負責執行的法例。如有需要，僱用實習學員的僱主須根據《僱傭條例》的要求，出示僱員的資料及紀錄，包括確認書（如適用），以供查閱。若僱主提供給實習學員的工作涉嫌違反相關法例的要求，確認書所載的資料會被勞工處用作執法之用，勞工處亦可能將有關資料轉交其他政府部門及機關，作進一步調查。有關政府部門及機關或會就確認書內的實習學員資料，向相關教育機構查詢。

Public officers of the Labour Department (LD) of the Government of the Hong Kong Special Administrative Region conduct inspection visits to places of employment to ensure employers’ compliance with ordinances administered by the LD. Employers taking on student interns are required under the Employment Ordinance to provide employees’ information and records, including the Confirmation (if applicable), for inspection by public officers of the LD when necessary. Should there be any suspected contravention of any relevant ordinances in connection with the work provided by the employer to the student intern, the information provided in the Confirmation may be used by the LD for law enforcement purpose. The LD may also transfer the information to relevant government departments and authorities for further investigation. Government departments and authorities may contact the education institution concerned to enquire about the information on the student intern as provided in the Confirmation.

¹ 見確認書附註1。 See footnote 1 in the Confirmation.

² 見確認書附註2。 See footnote 2 in the Confirmation.

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茲確認本教育機構安排或認可以下學生於指定的一段期間內，在與本教育機構向該名學生提供《最低工資條例》所指的課程類別有關連的情況下，在 Renaissance Harbour View Hotel (僱用該名實習學員的機構或公司名稱) 進行工作，而該工作就頒授該課程所達致的學術資格而言，屬頒授要求中的必修或選修部分。

This is to confirm that the specified period of work for the following student at Renaissance Harbour View Hotel (name of organisation or company employing the student intern) is arranged or endorsed by this education institution in connection with a programme that is of a kind specified in the Minimum Wage Ordinance and being provided by this education institution to the student, for which the work is a compulsory or elective component of the requirements for the award of the academic qualification to which the programme leads.

實習學員的個人資料、正修讀的課程名稱和類別以及獲安排或認可的工作

Personal particulars of the student intern, the name and the kind of programme enrolled as well as the period of work being arranged or endorsed

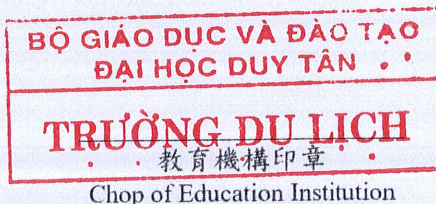
姓名(正楷) Name (in block letters)	DANG TRAN CAM LY
香港身份證 / 護照* 號碼 HK Identity Card / Passport* No.	E04382122
正修讀的課程 Programme Enrolled	課程名稱: Name of the programme: 課程類別 Kind of the programme: (請選擇適當項目 Please select appropriate box) ☐ (本地課程) 全日制經評審課程 ¹ (local programme) a full-time accredited programme ¹ ☒ (非本地教育課程) 全日制學位或更高程度的教育課程 ² (non-local education programme) a full-time programme of education at the level of degree or higher ²
實習職位名稱 Internship Position	F&B Service
進行工作的期間 Period of Work	06 months

負責人姓名 Name of Responsible Officer: Bui Kim Luan 職位 Position: Acting Dean

簽署 Signature: [Signature] 代表 signed for and on behalf of

簽署

(教育機構名稱 name of education institution)



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如有任何查詢，請與以下人士聯絡 For enquiries, please contact the following person:

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傳真號碼 Fax Number:

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網址 Website:

* 請刪去不適用者。 Please delete as appropriate.

¹ 根據《最低工資條例》，「經評審課程」指符合以下說明的全日制課程：

- (a) 由附表 1 指明的教育機構提供 (名單見下頁)；
- (b) 屬《學術及職業資歷評審條例》(第 592 章) 附表 3 第 1、2 或 3 條描述的類別的進修計劃；及
- (c) (如該全日制課程由根據《教育條例》(第 279 章) 註冊或臨時註冊的學校提供) 屬該條例所指的專上教育程度。

The Minimum Wage Ordinance provides that "accredited programme" means a full-time programme that:

- (a) is provided by an education institution specified in Schedule 1 (see the list on next page);
- (b) is a learning programme of a kind described in section 1, 2 or 3 of Schedule 3 to the Accreditation of Academic and Vocational Qualifications Ordinance (Cap. 592); and
- (c) if provided by a school registered or provisionally registered under the Education Ordinance (Cap. 279), is at the level of post secondary education (within the meaning of that Ordinance).

² 根據《最低工資條例》，「非本地教育課程」指達致頒授學位或更高程度的非本地學術資格的全日制教育課程。

The Minimum Wage Ordinance provides that "non-local education programme" means a full-time programme of education which leads to the award of a non-local academic qualification which is at the level of degree or higher.

注意：資料使用者須遵守《個人資料(私隱)條例》(第 486 章)有關保障個人資料原則的規定。

Note: Data users should comply with the requirements of the Personal Data (Privacy) Ordinance (Cap. 486) concerning data protection principles.

《最低工資條例》附表 1 指明的教育機構
Education institutions specified in Schedule 1 to the Minimum Wage Ordinance

- 1 由《香港教育大學條例》（第 444 章）設立的香港教育大學
The Education University of Hong Kong established by The Education University of Hong Kong Ordinance (Cap. 444)
- 2 由《香港大學條例》（第 1053 章）設立的香港大學
University of Hong Kong established by the University of Hong Kong Ordinance (Cap. 1053)
- 3 由《香港理工大學條例》（第 1075 章）設立的香港理工大學
The Hong Kong Polytechnic University established by The Hong Kong Polytechnic University Ordinance (Cap. 1075)
- 4 由《香港中文大學條例》（第 1109 章）設立的香港中文大學
The Chinese University of Hong Kong established by The Chinese University of Hong Kong Ordinance (Cap. 1109)
- 5 由《香港浸會大學條例》（第 1126 章）設立的香港浸會大學
Hong Kong Baptist University established by the Hong Kong Baptist University Ordinance (Cap. 1126)
- 6 由《香港城市大學條例》（第 1132 章）設立的香港城市大學
City University of Hong Kong established by the City University of Hong Kong Ordinance (Cap. 1132)
- 7 由《香港演藝學院條例》（第 1135 章）設立的香港演藝學院
The Hong Kong Academy for Performing Arts established by The Hong Kong Academy for Performing Arts Ordinance (Cap. 1135)
- 8 由《香港科技大學條例》（第 1141 章）設立的香港科技大學
The Hong Kong University of Science and Technology established by The Hong Kong University of Science and Technology Ordinance (Cap. 1141)
- 9 由《香港公開大學條例》（第 1145 章）設立的香港公開大學
The Open University of Hong Kong established by The Open University of Hong Kong Ordinance (Cap. 1145)
- 10 由《嶺南大學條例》（第 1165 章）設立的嶺南大學
Lingnan University established by the Lingnan University Ordinance (Cap. 1165)
- 11 根據《專上學院條例》（第 320 章）註冊的認可專上學院
Approved post secondary colleges registered under the Post Secondary Colleges Ordinance (Cap. 320)
- 12 根據《職業訓練局條例》（第 1130 章）第 6(2)(h)條設立的機構
Bodies established under section 6(2)(h) of the Vocational Training Council Ordinance (Cap. 1130)
- 13 根據《教育條例》（第 279 章）註冊或臨時註冊的學校
Schools registered or provisionally registered under the Education Ordinance (Cap. 279)

